

STATE OF NEW YORK

2618--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 21, 2025

Introduced by M. of A. SAYEGH, SANTABARBARA, BUTTENSCHON, ALVAREZ, FALL, TAYLOR, LEVENBERG, COLTON, CUNNINGHAM, CONRAD, WILLIAMS, ZINERMAN, COOK, McDONOUGH, CHANG, PIROZZOLO, DeSTEFANO, K. BROWN, BRABENEC, LEMONDES, NOVAKHOV, BENDETT, GRAY, SHIMSKY, BEEPHAN, TAGUE, GALLAHAN, HYNDMAN, BROOK-KRASNY -- read once and referred to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to minimum standards for the security and safety of school grounds

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 305 of the education law is amended by adding a new subdivision 57 to read as follows:

57. The commissioner, in conjunction with the superintendent of state police and the commissioner of the division of homeland security and emergency services, shall establish, by rule, minimum standards for the security and safety of school buildings, grounds and property so as to provide an appropriately safe learning environment. Such standards shall include, but not be limited to, the security of building doors, windows and other points of entry, and access to school grounds and property, including guidelines for fences and security gates.

§ 2. The opening paragraph of subdivision 6 of section 3602 of the education law, as amended by chapter 529 of the laws of 2023, is amended to read as follows:

Any apportionment to a school district pursuant to this subdivision shall be based upon base year approved expenditures for capital outlays incurred prior to July first, two thousand one from its general fund, capital fund or reserved funds and current year approved expenditures for debt service, including debt service for refunding bond issues eligible for an apportionment pursuant to paragraph g of this subdivision and lease or other annual payments to the New York city educational

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD05459-02-5

1 construction fund created by article ten of this chapter or the city of
2 Yonkers educational construction fund created by article ten-B of this
3 chapter which have been pledged to secure the payment of bonds, notes or
4 other obligations issued by the fund to finance the construction, acqui-
5 sition, reconstruction, rehabilitation or improvement of the school
6 portion of combined occupancy structures, or for lease or other annual
7 payments to the New York state urban development corporation created by
8 chapter one hundred seventy-four of the laws of nineteen hundred sixty-
9 eight, pursuant to agreement between such school district and such
10 corporation relating to the construction, acquisition, reconstruction,
11 rehabilitation or improvement of any school building, or for annual
12 payments to the dormitory authority pursuant to any lease, sublease or
13 other agreement relating to the financing, refinancing, acquisition,
14 design, construction, reconstruction, rehabilitation, improvement,
15 furnishing and equipping of, or otherwise provide for school district
16 capital facilities or school district capital equipment made under the
17 provisions of section sixteen hundred eighty of the public authorities
18 law, or for annual payments pursuant to any lease, sublease or other
19 agreement relating to the financing, refinancing, acquisition, design,
20 construction, reconstruction, rehabilitation, improvement, furnishing
21 and equipping of, or otherwise providing for educational facilities of a
22 city school district under the provisions of section sixteen of chapter
23 six hundred five of the laws of two thousand, or for payments, pursuant
24 to any assignment authorized by section twenty-seven hundred ninety-
25 nine-~~tt~~ of the public authorities law, of debt service in furtherance of
26 funding the five-year educational facilities capital plan of the city of
27 New York school district or related debt service costs and expenses as
28 set forth in such section, for annual payments pursuant to any lease,
29 sublease or other agreement relating to the financing, refinancing,
30 design, reconstruction, rehabilitation, improvement, furnishing and
31 equipping of, or otherwise providing for projects authorized pursuant to
32 the city of Syracuse and the board of education of the city school
33 district of the city of Syracuse cooperative school reconstruction act,
34 for annual payments pursuant to any lease, sublease or other agreement
35 relating to the financing, refinancing, design, reconstruction, rehabil-
36 itation, improvement, furnishing and equipping of, or otherwise provid-
37 ing for projects authorized pursuant to the city of Rochester and the
38 board of education of the city school district of the city of Rochester
39 school facilities modernization program act, for annual payments pursu-
40 ant to any lease, sublease or other agreement relating to the financing,
41 refinancing, design, construction, reconstruction, rehabilitation,
42 improvement, furnishing and equipping of, or otherwise providing for
43 projects authorized pursuant to the Yonkers city school district facili-
44 ties modernization program act, or for lease, lease-purchase or other
45 annual payments to another school district or person, partnership or
46 corporation pursuant to an agreement made under the provisions of
47 section four hundred three-b, subdivision eight of section twenty-five
48 hundred three, or subdivision six of section twenty-five hundred fifty-
49 four of this chapter, provided that the apportionment for such lease or
50 other annual payments under the provisions of section four hundred
51 three-b, subdivision eight of section twenty-five hundred three, or
52 subdivision six of section twenty-five hundred fifty-four of this chap-
53 ter, other than payments under a lease-purchase agreement or an equiv-
54 alent agreement, shall be based upon approved expenditures in the
55 current year. Approved expenditures for capital outlays from a school
56 district's general fund, capital fund or reserved funds that are

1 incurred on or after July first, two thousand two, and are not aidable
2 pursuant to subdivision six-f of this section, shall be aidable as debt
3 service under an assumed amortization established pursuant to paragraphs
4 e and j of this subdivision. In any such case approved expenditures
5 shall be only for new construction, reconstruction, purchase of existing
6 structures, for site purchase and improvement, for new garages, for
7 original equipment, furnishings, machinery, or apparatus, and for
8 professional fees and other costs incidental to such construction or
9 reconstruction, or purchase of existing structures. In the case of a
10 lease or lease-purchase agreement entered pursuant to section four
11 hundred three-b, subdivision eight of section twenty-five hundred three
12 or subdivision six of section twenty-five hundred fifty-four of this
13 chapter, approved expenditures for the lease or other annual payments
14 shall not include the costs of heat, electricity, water or other utili-
15 ties or the costs of operation or maintenance of the leased facility. An
16 apportionment shall be available pursuant to this subdivision for
17 construction, reconstruction, rehabilitation or improvement in a build-
18 ing, or portion thereof, being leased by a school district only if the
19 lease is for a term of at least ten years subsequent to the date of the
20 general construction contract for such construction, reconstruction,
21 rehabilitation or improvement. Each school district shall prepare a five
22 year capital facilities plan, pursuant to regulations developed by the
23 commissioner for such purpose, provided that in the case of a city
24 school district in a city having a population of one million inhabitants
25 or more, such facilities plan shall comply with the provisions of
26 section twenty-five hundred ninety-p of this chapter and this subdivi-
27 sion. Such plan shall include, but not be limited to, a building inven-
28 tory, and estimated expense of facility needs, for new construction,
29 additions, alterations, reconstruction, major repairs, energy consump-
30 tion and maintenance by school building, as appropriate. Such plan shall
31 consider the incorporation of design principles and strategies, pursuant
32 to guidance issued by the commissioner, as part of a comprehensive
33 approach to provide a safe, secure and healthy school environment. Such
34 five year plan shall include a priority ranking of projects, including
35 those necessary to comply with such safety standards as are established
36 pursuant to subdivision fifty-seven of section three hundred five of
37 this chapter, and shall be amended if necessary to reflect subsequent
38 on-site evaluations of facilities conducted by state supported contrac-
39 tors.

40 § 3. This act shall take effect on the first of July next succeeding
41 the date on which it shall have become a law.